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CHATRIE *v.* UNITED STATES

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. 25–112. Argued April 27, 2026—Decided June 29, 2026

On May 20, 2019, a man robbed a credit union in Midlothian, Virginia. Local police officers learned from witness interviews and surveillance footage that the robber had approached the credit union from a corner of an adjacent church while appearing to talk on a cell phone, but they could not find out anything more, and the robber remained at large. On June 14, the police officers applied to a Virginia magistrate for a geofence warrant directed to Google, which would require Google to hand over data about the cell phones located within a 150-meter radius of the credit union—the so-called "geofence"—near the time of the crime. The application described the cell-phone location data Google collects through a service called Location History, which records the location of a user's cell phone every two minutes or so. The application also explained how that cell-phone location data could help identify the robber, possible accomplices, or additional witnesses. The warrant described a three-step process that the police would follow: at step one, Google would produce anonymized location data for all cell phones within the geofence 30 minutes before to 30 minutes after the robbery; at step two, officers would attempt to narrow the list, and Google would provide additional anonymized data for that narrowed list, consisting of cell-phone locations both inside and outside the geofence during a two-hour period surrounding the robbery; and at step three, officers would further narrow the list, and Google would turn over identifying information, including names and phone numbers, for users on the final list. The magistrate issued the warrant, and through this process, Google ultimately produced three cell-phone users' identifying information, including petitioner Okello Chatrie, whose location data showed that he entered the geofence about ten minutes before the robbery and headed toward a residential area immediately after leaving the bank.

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Following further police work, a federal grand jury charged Chatrie with robbery and related firearms offenses, and he moved to suppress the information the police obtained from Google. According to Chatrie, the officers had acquired that data through a Fourth Amendment search, and the warrant ostensibly authorizing that search was invalid. The District Court found that the geofence warrant "plainly violates the rights enshrined in [the Fourth] Amendment" but denied the motion

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based on the good-faith exception to the exclusionary rule. 590 F. Supp. 3d 901, 905, 937–938. A divided panel of the Fourth Circuit affirmed on different reasoning, holding that no search occurred because Chatrie "did not have a reasonable expectation of privacy in two hours' worth of Location History data voluntarily exposed to Google." 107 F. 4th 319, 325. The Fourth Circuit granted rehearing en banc and affirmed in a one-sentence *per curiam*, with the court dividing evenly on whether a Fourth Amendment search had occurred. This Court granted certiorari solely on the question whether the police violated the Fourth Amendment in obtaining Chatrie's location data.

Held: Police officers conducted a Fourth Amendment search when they acquired Chatrie's location data from Google because an individual has a reasonable expectation of privacy in his cell-phone location information. Pp. 619–641.

(a) The Fourth Amendment protects individuals' reasonable expectations of privacy, and governmental "intrusion into that private sphere generally qualifies as a search." *Carpenter* v. *United States*, 585 U. S. 296, 304. The Amendment's "basic purpose" is "to safeguard the privacy and security of individuals against arbitrary invasions by governmental officials," *id.*, at 303, and it was designed "to place obstacles in the way of a too permeating police surveillance," *United States* v. *Di Re*, 332 U. S. 581, 595. Pp. 619–638.

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(1) In *Carpenter*, this Court held that accessing cell-site location information (CSLI) constitutes a Fourth Amendment search because "individuals have a reasonable expectation of privacy in the whole of their physical movements," 585 U. S., at 310. The Court reasoned that CSLI provides a "detailed" and "encyclopedic" portrait of a person's whereabouts, *id.*, at 309, and, with that, "an intimate window into a person's life," *id.*, at 311. Because people "compulsively carry" their cell phones "all the time," the Court explained, a cell phone "tracks nearly exactly the movements of its owner," and thus "faithfully follows" him not only through "public thoroughfares [but] into private residences, doctor's offices, political headquarters, and other potentially revealing locales." *Ibid.* The Court further observed that the "newfound tracking capacity" that CSLI gives the police "runs against everyone"—not just those "under investigation"—and "travel[s] back in time," making possible a form of surveillance that would have been unknown prior to the digital age, *id.*, at 311–312. *Carpenter* accordingly held that "[a]llowing government access to cell-site records contravenes" expectations of privacy. *Id.*, at 311. Pp. 622–624.

(2) Everything *Carpenter* relied on to find that law enforcement officers conducted a Fourth Amendment search when they accessed CSLI records applies as well or better to the police's accessing of Loca-

tion History data. First, Location History provides an even more fine-tuned picture of a person's movements, pinpointing location within around twenty meters rather than within sectors of one-eighth to four square miles; it records location every two minutes or so for a daily average of 720 chartings rather than 101; and it can estimate elevation to reveal which floor of a building a phone is on. Second, Location History allows police to reconstruct "retrospective[ly]," and with no real effort, people's comings and goings in any area, enabling "tireless and absolute surveillance" of any number of people in any number of places. *Carpenter*, 585 U. S., at 312. And third, Location History implicates personal privacy interests even more than CSLI, because Location History is more the cell-phone user's own. Most cell-phone users have no awareness of CSLI records, and would never try to retrieve them; by contrast, Google users regularly employ Location History as a personal journal. In that way, Location History resembles other private materials—*e. g.*, emails, documents, photographs, or calendars—that even if stored on Google's servers, a user reasonably views as his own and expects to be shielded from the "inquisitive eyes" of the government. *Id.*, at 305. Pp. 625–627.

(3) The Government's argument that accessing only a short amount of cell-phone location information does not count as a Fourth Amendment search fails. "[E]ven short-term monitoring" can provide "a wealth of detail about [a person's] familial, political, professional, religious, and sexual associations," *United States* v. *Jones*, 565 U. S. 400, 415, and this Court has never understood Fourth Amendment protections as kicking in only once an intrusion "goes too far," *Pennsylvania Coal Co.* v. *Mahon*, 260 U. S. 393, 415. Where the Fourth Amendment applies, it applies regardless of "the quality or quantity of information" the government obtains. *Kyllo* v. *United States*, 533 U. S. 27, 37. That approach makes all the more sense when, as with Location History, law enforcement officials can select the time-limited set of materials they want from an all-encompassing database. Pp. 627–632.

(4) The Government argues that the so-called third-party doctrine precludes Chatrie from invoking the Fourth Amendment's protections. The idea is that in "authoriz[ing] Google to collect, retain, and use" his location information, Chatrie lost his legitimate expectation of privacy, and therefore his right to complain of a search. Brief for United States 15. But *Carpenter* refused to apply the third-party doctrine to CSLI, and no good reason exists to reach a different result for Location History. In *Carpenter*, the Court rejected application of the third-party doctrine to CSLI because such information is "qualitatively different" from "telephone numbers and bank records," 585 U. S., at 309—it is incomparably "revealing" and is "not truly 'shared' as one normally un-

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derstands the term" given that cell phones are "indispensable to participation in modern society," *id.*, at 315. Both differentiating features apply equally or better to Location History, which is even more "revealing" than CSLI and is "not truly shared" in the normal sense of wanting a third party to see or use it. *Ibid.* The exposure of that information to Google is merely what happens when a user avails himself of one of the services on his cell phone. The Government's argument that generating Location History, unlike producing CSLI, is a voluntary choice is meritless. That argument ignores how and why Google users turn on Location History: Google repeatedly prompts users to turn on the service, often warning that devices will not "work correctly" otherwise, 2 App. 140–141, while not disclosing in that prompt how frequently users' location information would be recorded, how precise it would be, or how it might be given to the government. More generally, an app-by-app, feature-by-feature method of granting Fourth Amendment protection misapprehends the nature of modern cell-phone use, where nearly everything requires some kind of "affirmative act" beyond "powering up" a given app or service. The Government wishes to disconnect the activities people do on their cell phones from the mere act of carrying a turned-on cell phone (the thing that generates CSLI), with only the latter receiving assured Fourth Amendment protection. But the point of carrying smartphones is to use what is on them—as *Carpenter* said, to use the apps and "services they provide." 585 U. S., at 315. Accordingly, a cell-phone user is not to be viewed as sharing private information with third parties—which then can be freely passed on to the government—just by doing the ordinary things cell-phone users do. Pp. 632–637.

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(b) The conclusion that a Fourth Amendment search occurred does not resolve this case, because the Fourth Amendment prohibits only searches that are "unreasonable." When law enforcement officials undertake a search to discover evidence of a crime, the reasonableness standard generally requires that they seek a warrant from "a neutral and detached magistrate," *Johnson* v. *United States*, 333 U. S. 10, 14, who may issue a warrant only when "probable cause is properly established and the scope of the authorized search is set out with particularity," *Kentucky* v. *King*, 563 U. S. 452, 459. The warrant issued here, as described earlier, was an uncommon, multi-step one, and the parties have contested the legality of each stage of the search process it authorized. The Fourth Circuit did not address the questions that unusual warrant raises. Because this is "a court of review, not of first view," *Cutter* v. *Wilkinson*, 544 U. S. 709, 718, n. 7, the Court leaves it up to the Court of Appeals to decide whether, at each step of the search process, the warrant satisfied the Fourth Amendment's requirements of particularity and probable cause. Pp. 638–640.

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136 F. 4th 100, vacated and remanded.

KAGAN, J., delivered the opinion of the Court, in which ROBERTS, C. J., and SOTOMAYOR, KAVANAUGH, and JACKSON, JJ., joined. JACKSON, J., filed a concurring opinion, in which SOTOMAYOR, J., joined, *post*, p. 642. GORSUCH, J., filed an opinion concurring in the judgment, *post*, p. 644. ALITO, J., filed a dissenting opinion, in which THOMAS, J., joined as to Part I, and in which BARRETT, J., joined as to Parts II–B, II–C–1, and II–C–2, *post*, p. 651. BARRETT, J., filed a dissenting opinion, *post*, p. 670.

Adam G. Unikowsky argued the cause for petitioner. With him on the briefs were *Laurel A. Raymond*, *David A. Strauss*, *Sarah M. Konsky*, *Geremy C. Kamens*, *Laura J. Koenig*, *Patrick L. Bryant*, and *Michael W. Price*.

Deputy Solicitor General Feigin argued the cause for the United States. With him on the brief were *Solicitor General Sauer*, *Assistant Attorney General Duva*, *Zoe A. Jacoby*, and *Ethan A. Sachs*.*

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*Briefs of *amici curiae* urging reversal were filed for the American Center for Law and Justice by *Jay Alan Sekulow*, *Jordan A. Sekulow*, *Stuart J. Roth*, *Andrew J. Ekonomou*, *Geoffrey R. Surtees*, and *Liam R. Harrell*; for the American Civil Liberties Union et al. by *Jennifer Stisa Granick*, *Cecillia D. Wang*, *Evelyn Danforth-Scott*, *Matthew W. Callahan*, *Nathan Freed Wessler*, *Brett Max Kaufman*, *Esha Bhandari*, *Ben Wizner*, *Jennifer Lynch*, and *Andrew Crocker*; for the Americans for Prosperity Foundation by *Michael Pepson* and *Cynthia Fleming Crawford*; for America's Future et al. by *William J. Olson*, *Jeremiah L. Morgan*, *Robert J. Olson*, and *John I. Harris III*; for the Cato Institute by *Matthew P. Cavedon* and *Brent Skorup*; for the Center for Democracy and Technology et al. by *Katelyn N. Ringrose*, *J. Jonathan Hawk*, and *Greg Nojeim*; for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *Brian R. Frazelle*; for Eight Law Professors by *Megan Graham*, *pro se*; for the Institute for Justice by *John G. Wrench*, *Joshua Windham*, and *Robert Frommer*; for the New Civil Liberties Alliance by *Markham S. Chenoweth*; for the Project for Privacy & Surveillance Accountability, Inc., by *Gene C. Schaerr* and *Erik S. Jaffe*; for The Rutherford Institute by *Ethan H. Townsend* and *John W. Whitehead*; and for Brian L. Owsley by *Stuart Banner*. *Alan Butler* filed a brief of *amici curiae* for Law & Technology Scholars et al. urging vacatur.

Briefs of *amici curiae* urging affirmance were filed for the State of Iowa et al. by *Brenna Bird*, Attorney General of Iowa, and *Eric Wessan*, Solici-

JUSTICE KAGAN delivered the opinion of the Court.

In recent years, law enforcement officers have employed so-called geofence warrants to obtain information that technology companies collect about their users' cell-phone locations. Suppose that investigators know a crime was committed at a particular place and time, but do not have a suspect. They may draw a "geofence"—a virtual perimeter—around the crime scene and get a warrant compelling a company to hand over data about the cell phones located in that area near the time of the crime. Following a process specified in the warrant, the company will turn over the cell-

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tor General, by *Dana Nessel*, Attorney General of Michigan, and *Ann M. Sherman*, Solicitor General, and by the Attorneys General for their respective jurisdictions as follows: *Steve Marshall* of Alabama, *Stephen J. Cox* of Alaska, *Kris Mayes* of Arizona, *Tim Griffin* of Arkansas, *Brian L. Schwalb* of the District of Columbia, *Chris Carr* of Georgia, *Kwame Raoul* of Illinois, *Theodore E. Rokita* of Indiana, *Kris Kobach* of Kansas, *Liz Murrill* of Louisiana, *Anthony G. Brown* of Maryland, *Aaron M. Frey* of Maine, *Keith Ellison* of Minnesota, *Lynn Fitch* of Mississippi, *Catherine Hanaway* of Missouri, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Jennifer Davenport* of New Jersey, *Raúl Torrez* of New Mexico, *Letitia James* of New York, *Jeff Jackson* of North Carolina, *Dave Yost* of Ohio, *Gentner Drummond* of Oklahoma, *Dave Sunday* of Pennsylvania, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, *Jonathan Skrmetti* of Tennessee, *Ken Paxton* of Texas, *Derek E. Brown* of Utah, and *Nicholas W. Brown* of Washington; and for the Local Government Legal Center by *Thomas R. McCarthy* and *Tiffany H. Bates*.

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Briefs of *amici curiae* were filed for Google LLC by *Scott A. Keller*, *Mithun Mansinghani*, and *Drew F. Waldbeser*; for the Innocence Project et al. by *James C. Dugan*; for the Liberty Justice Center by *Jeffrey M. Schwab*; for the Microsoft Corporation by *Ari Holtzblatt* and *Nathaniel W. Reisinger*; for NetChoice by *Robert A. Van Kirk*, *Amy Mason Saharia*, *Charles L. McCloud*, *Atticus W. DeProspo*, and *Paul Taske*; for the Policing Project at New York University School of Law by *Nicholas Rosellini*, *Sumer Ghazala*, and *Barry Friedman*; for the Reporters Committee for Freedom of The Press et al. by *Bruce D. Brown*, *Lisa Zycherman*, *Jake Karr*, and *Alex Abdo*; for Restore the Fourth, Inc., by *Mahesha P. Subbaraman*; for the Software & Information Industry Association et al. by *Anne Voigts*; for Technologists by *Christopher T. Bavitz*; for X Corp. by *Mark Miller*; for James W. Harper, *pro se*; and for Orin S. Kerr, *pro se*.